

2022 PCrLJ 649

[Lahore High Court]

Judges: Honorable Justice Raja Shahid Mehmood Abbasi



TALAT MEHMOOD ABBASI

versus

ADDITIONAL SESSIONS JUDGE, RAWALPINDI

PRODUCTION OF ADDITIONAL EVIDENCE

Criminal Revision No. 163 of 2021
decided on 3rd December, 2021.

(a) Criminal Procedure Code---S.540, S.435, S.439, S.173, S.342; P.T.A. Act, 1996---S.31; E.T.O., 2002---S.36, S.37; P.P.C.---S.109---Production of Additional Evidence---

The trial court was justified in dismissing the application because it was filed at a very belated stage to fill up lacunas, which is not permissible, especially given the High Court's specific direction to proceed from the stage of Section 342 Cr.P.C. statements.

While it is obligatory under Section 540 Cr.P.C. to allow evidence essential for a just decision, the court cannot allow a party to fill up lacunas or extend a second chance to improve their case, as this would tarnish the objectivity and impartiality of the court.

Faisal Bin Khurshid for Appellant.

Malik Qamar Afzal, Barrister Afzal Hussain, Arslan Binyamin for Respondent.

Malik Shahid Iqbal for Department.

Petition dismissed.

Barrister Afzal Hussain and Arslan Binyamin for Respondent No. 4.

ORDER

RAJA SHAHID MEHMOOD ABBASI, J.---Through this Criminal Revision under sections 435/439, Cr.P.C., the petitioner assails the vires of order dated 19.05.2021 passed by learned Additional Sessions Judge, Rawalpindi, whereby he dismissed the application under section 540, Cr.P.C. filed by the petitioner for placing on record reply submitted by the complainant vide letter No.17-1/2013/Enf/PTA-14 dated 27.03.2015 comprising 455-pages with Final Report of Re-investigation Committee (Ex.PL).

2. Brief facts of the case are that the petitioner is complainant of case FIR Nos.23 dated 04.11.2013 registered under section 31 of P.T.A. Act, 1996 read with sections 36 and 37 of E.T.O., 2002 and section 109, P.P.C. at Police Station FIA, Cyber Crime Circle, Rawalpindi, wherein, after completion of investigation report under section 173, Cr.P.C. was submitted and trial commenced. During trial learned trial court discharged Muhammad Abdul Qadeer Awan and Rizwan Younas, respondents Nos.3 and 4 while returning report under section 173, Cr.P.C. vide order dated 15.11.2017, which order was assailed by the complainant/petitioner before this Court by way of filing Criminal Revision No.244/2019, which was allowed vide order dated 23.11.2020 and the impugned order was set aside with direction to learned trial court to proceed from the stage when the statements under section 342, Cr.P.C. of the accused/respondents Nos.3 and 4 had been recorded and to decide the case on the basis of evidence available on record. Thereafter the petitioner filed application under section 540, Cr.P.C. for producing additional evidence but the same was dismissed by learned trial court vide impugned order dated 19.05.2021. Hence this petition.

3. Learned counsel for the petitioner contends that the impugned order has been passed in hasty manner; that the learned court below has not applied its judicious mind and passed the impugned order in a mechanical way; that evidence ought to be produced was necessary for just decision of the case but learned trial court failed to appreciate this fact and dismissed the application of the petitioner. Lastly prays for setting aside the impugned order.

4. On the other hand, learned counsel appearing on behalf of

accused/respondents Nos.3 and 4 have opposed this petition while arguing that most of the documents/evidence ought to be produced is already part of record; that in the earlier round of litigation, this Court has specifically directed the trial court to proceed with the trial from the stage of statements of accused under section 342, Cr.P.C.; that the application has been filed at a very belated stage in order to fill up the lacunas and to linger on the matter, hence learned trial court has rightly dismissed the application through the order under attack, which does not suffer from any legal infirmity or irregularity.

5. Heard. The documents appended with this petition perused.

6. It divulges from record that the petitioner is complainant of above mentioned FIR wherein after investigation report under section 173, Cr.P.C. was submitted and the trial commenced. During trial Muhammad Abdul Qadeer Awan and Rizwan Younas, respondents No.3 and 4 were discharged by learned trial court while returning report under section 173, Cr.P.C. vide order dated 15.11.2017. Aggrieved by said order the petitioner filed Criminal Revision No.244/2019 before this Court, which was allowed vide order dated 23.11.2020 and the impugned order was set aside with direction to learned trial court to proceed from the stage when the statements under section 342, Cr.P.C. of the accused/respondents Nos.2 and 3 had been recorded and to decide the case on the basis of evidence available on record. Every criminal case, no doubt, has its own facts and it is indeed true that where some evidence is essential for just decision of the case, it is obligatory upon the Court to allow its production and examination as provided under section 540, Cr.P.C. but at the same time, the court cannot allow one of the parties to fill up lacunas in their evidence or extend a second chance to a party to improve their case or the quality of evidence tendered by them, because, any such step would amount to tarnish the objectivity and impartiality of the court which is its hallmark. In the instant case, the learned trial court has dismissed the application of the petitioner for production of above mentioned documents with the observation that statements of prosecution witnesses were recorded thrice and said documents (Ex.Pk and Ex.PL) are already part of record and that when re-investigation was completed, the prosecution was required to submit supplementary challan with the permission of the court and in said report the prosecution was required to make reference of both the reports which were got exhibited as Ex.PK and Ex.PL and the officers who had conducted reinvestigation proceedings were to be cited as PWs but this procedure was not followed. Lastly it was observed that this Court while remanding the case to the trial court has specifically directed to proceed from the stage when the statements under section 342, Cr.P.C. of the accused/respondents Nos.2 and 3 had been recorded and to decide the case on the basis of evidence available on record. In such position, learned trial court was justified in holding that the application for producing additional evidence was filed at very belated stage only to fill up the lacunas which is not permissible under the law.
7. For what has been discussed above, I do not find any legitimate exception to interfere in well-reasoned and speaking order passed by learned trial court. Consequently, the instant petition being devoid of any force is hereby dismissed.

SA/T-18/L Petition dismissed.